

The Court has read and considered the Defendant's Motion for Judgment on the Pleadings (ROA 73), Defendant's Motion for Summary Judgment (ROA 76), and Plaintiff's Opposition to Defendant's Motion on the Pleadings (ROA 80).

American Family Housing participates in affordable housing programs connected to federal subsidies, thereby triggering the notification requirements of the Violence Against Women and Department of Justice Reauthorization Act of 2022 (VAWA), as reflected in Lease Addendum AFH-10. Pursuant to 24 C.F.R. § 5.2005(a)(2)(iii), a covered housing provider must provide a tenant with the Notice of Occupancy Rights Under VAWA and the VAWA certification form at specified times, including when serving a notice to terminate the tenancy.

As explained in *DHI Cherry Glen Associates, L.P. v. Gutierrez* (2019) 46 Cal.App.5th Supp. 1, 11:

"The plain and commonsense meaning of the statutory language contained in 24 Code of Federal Regulations part 5.2005 (2019) requires VAWA notices to be served with any notice of termination. There is no language in the statute that would support a meaning that the VAWA notices only need to be served with notices of termination that are premised on domestic violence. ... Respondent was required to serve the VAWA notices on appellant prior to filing a complaint for unlawful detainer against appellant."

Here, the Proof of Service for the Notice to Pay Rent or Quit identifies only the "Notice to Pay Rent or Quit" as the document served. It contains no indication that the Notice of Occupancy Rights Under VAWA or the required VAWA certification form accompanied the notice. The record likewise contains no other evidence demonstrating that the required VAWA documents were served contemporaneously with the notice to pay rent or quit.

California unlawful detainer proceedings require strict compliance with all applicable statutory notice requirements, including those imposed by applicable federal law. A landlord's failure to comply with mandatory notice requirements before commencing an unlawful detainer action renders the notice legally defective and precludes the action from proceeding.

Because Plaintiff is a covered housing provider subject to VAWA's notice requirements, and because the undisputed evidence demonstrates that Plaintiff did not serve the required VAWA documents together with the Notice to Pay Rent or Quit as required by 24 C.F.R. § 5.2005(a)(2)(iii), Plaintiff failed to satisfy a mandatory precondition to maintaining this unlawful detainer action. This defect cannot be cured after service of the notice.

Accordingly, the Court concludes that Plaintiff has failed to establish a legally sufficient basis for the unlawful detainer action. Defendant's Motion for Summary Judgment is therefore **GRANTED**.

		The Court finds for the Defendant, Sylvia Zamora, that she was not properly served with a notice to pay rent or quit with the proper VAWA notices; therefore, Ms. Zamora is entitled to possession of the property and is the prevailing party in this matter. Defendant's counsel may submit a motion for attorneys' fees and court costs. Defendant's counsel is ordered to prepare a judgment consistent with this Court's order. As the Court granted the motion for summary judgment, the Court need not address the motion for judgment on the pleadings.
6	30-2026-01558581 Far West South Coast, Ltd. vs. Platek	The Court has read and considered the Plaintiff's Motion in Limine (ROA 98) and Defendant's Opposition (ROA 103). The Court takes Judicial Notice of the Defendant's Answer (ROA 48), the Clerk's Certificate of Mailing/Electronic Service (ROA 56), the 7/6/2026 Minute Order (ROA 64), and the Clerk's Certificate of Mailing/Electronic Service (ROA 65). On June 20, 2026, an e-filing clerk in the Superior Court Clerk's Office emailed notice to the parties setting the matter for a court trial on July 6, 2026. On the evening of July 5, 2026, while reviewing the file, the Court determined that the matter had been erroneously set for a court trial because the Defendant had timely demanded a jury trial in the Answer filed on June 8, 2026. On July 6, 2026, the Defendant did not appear. Due to the scheduling error, the Court took the matter off calendar and reset the case for jury trial on July 27, 2026, with a pretrial conference on July 24, 2026. By Motion in Limine, the Plaintiff requests an order precluding the Defendant from presenting or referring at trial to any evidence or documents not produced in response to discovery. According to the declaration of Plaintiff's counsel, the Defendant did not produce any documents in response to discovery requests served on July 9, 2026. The Defendant opposes the motion, arguing that the discovery requests were untimely because, at the time they were served, the matter was set for trial on July 6, 2026. Defendant contends that, under California Code of Civil Procedure section 2024.020(b)(1), the discovery cutoff occurred 5 days before the originally scheduled trial date of July 6, 2026, rendering the requests untimely. The California Court of Appeal held that discovery sanctions such as excluding a party's witness for failure to identify the witness in discovery are appropriate only if the omission was willful or a violation of a court's order compelling a response. (<i>Mitchell v. Superior Court</i> (2015) 243 Cal.App.4th 269, 272.) The Court DENIES the Plaintiff's Motion in Limine as to all evidence which was not turned over during discovery. Orange County Superior Court Local Rule 317 requires parties who are set for a jury trial to have an issue conference at least 14 days before the date set for trial to do several things, including exchanging exhibits. The Court orders the Defendant and the Plaintiff's Counsel to meet today outside the courtroom to complete the objectives of Local Rule 317. Each